

25STCV04420 25STCV04420

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-29

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Case Number: 25STCV04420 Hearing Date: July 29, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

CASSIE ELZY

vs.

KIDDER MATHEWS INC., et al.

Case

No.: 25STCV04420

Hearing Date: July 29, 2026

Plaintiff's

motion to compel Defendants to provide objection-free responses to her Requests for Production (Set Two) is GRANTED. Responses are due within 10 days of entry of this order.

Defendants

are each sanctioned, jointly and severally with counsel, \$1,050, due with 20 days of entry of this order.

On 2/14/2025,

Plaintiff Cassie Elzy (Plaintiff) filed suit against Kidder Mathews Inc. and Kidder Mathews of California, alleging: (1) sex/pregnancy discrimination; (2) violation of the Pregnancy Disability Leave Act; (3) retaliation; (4) CFRA interference; (5) failure to provide reasonable accommodation; (6) failure to provide reasonable accommodation; (7) failure to prevent discrimination and retaliation; (8) wrongful termination; (9) failure to timely pay wages; and (10) failure to reimburse business expenses.

On

6/4/2026, Plaintiff moved Defendant Kidder Mathews of California, Inc. (Defendant KMCI) and Kidder Mathews of California, Inc. (collectively, Defendants) to provide responses to her Requests for Production (Set Two). Plaintiff seeks monetary sanctions in connection with the motion.

Discussion

On 1/13/2026,

Plaintiff served the RFPs on Defendants by email. (Cruz Decl., ¶ 2, Exhs. A-B.) Defendants' responses were due on or before 2/17/2026. (Id. at ¶ 3.) On 2/12/2026, counsel for Defendants requested an extension to 2/26/2026. Plaintiff granted the requested extension. (Id.) However, Defendants did not serve any responses at any time or request a further extension by 2/26/2026. (Id. at ¶¶ 4, 7.) To date, no responses have been provided.

In

opposition, Defendants argue that there should be no waiver from objection because the original hearing date on this motion was 9/16/2026, but was accelerated to 7/29/2026. Defendant contends that if this motion were continued, it would be able to provide substantially compliant responses. However, this ignores the fact that responses were due in February 2026, and multiple extensions were granted. While Defendant explains that the delay in serving responses resulted from an inadvertent clerical error during the transition of legal assistants, the Court finds this inadequate to support a finding that relief of waiver should be granted. This motion was filed on 6/4/2026. As such, they were on notice of their failure to comply with discovery obligations long before this hearing.

Based on the

foregoing, Plaintiff's motion to compel Defendants to provide objection-free responses to her Requests for Production (Set Two) is granted. Responses are due within 10 days of entry of this order. Defendants are sanctioned, jointly and severally with counsel, \$1,050 (\$350/hr x 3 hr), due with 20 days of entry of this order.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.